

SALES REPRESENTATIVE AGREEMENT

Horizon Medical Devices • August 2026

INDEPENDENT SALES REPRESENTATIVE AGREEMENT

This Independent Sales Representative Agreement (the "Agreement") is effective as of August 30, 2026, by and between Horizon Medical Devices Inc. ("Company") and Apex Regional Sales LLC ("Representative").

1. APPOINTMENT AND TERRITORY

Company hereby appoints Representative as its exclusive independent sales representative to solicit orders for the Company's proprietary surgical instruments (the "Products") to hospitals and surgical centers within the states of Ohio, Indiana, and Michigan (the "Territory").

2. DUTIES OF REPRESENTATIVE

Representative shall use its best efforts to promote the Products within the Territory. Representative is strictly prohibited from altering Company's established pricing, terms, or conditions of sale. All purchase orders solicited by Representative are subject to final acceptance and approval by the Company at its corporate headquarters.

3. COMMISSIONS

Company shall pay Representative a commission of twelve percent (12.0%) of Net Invoiced Sales for all Products sold within the Territory during the term of this Agreement. "Net Invoiced Sales" shall mean the gross sales price less any taxes, freight charges, returns, and applicable trade discounts. Commissions shall be calculated monthly and paid by the 15th day of the month following the month in which the Company receives actual payment from the customer.

4. INDEPENDENT CONTRACTOR

Representative is an independent contractor. Nothing in this Agreement shall be construed to create an employer-employee relationship, partnership, or joint venture. Representative shall be solely responsible for its own travel, marketing, and operational expenses.

5. CONFIDENTIALITY

Representative acknowledges that it will have access to the Company's confidential pricing matrices, customer lists, and product schematics. Representative agrees to hold such information in strict confidence during the term of this Agreement and for a period of three (3) years thereafter.

6. TERMINATION

This Agreement may be terminated by either party upon thirty (30) days' written notice. Upon termination, Representative shall be entitled to commissions on orders accepted by the Company prior to the effective date of termination.